



File No.: EXP202200378

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by Mr. A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated September 23, 2022, and based on the following:

FACTS

FIRST: On September 23, 2022, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202200378, proceeding to archive the preliminary investigation proceedings. This resolution was notified to the appellant on September 28, 2022, as stated in the acknowledgment of receipt in the file.

SECOND: The appellant submitted a recourse for reconsideration on October 24, 2022, to this Spanish Agency for Data Protection, fundamentally based on the diligence of actions taken with the telecommunications operator Telecable Asturias by the Civil Guard, Main Post of Zafra (Investigation Area), in which it is stated that the ID presented at that commercial establishment to request the duplicate is a forgery.

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

In relation to the statements made by the appellant, which essentially reiterate those already made in the complaint, it should be noted that they were already analyzed and dismissed in the contested resolution, based on the legal grounds transcribed below:

From the actions taken and the information obtained, it is concluded that they verified that the applicant was the holder of the affected line and requested their ID, keeping a copy of it in the store for evidentiary purposes.

Taking the above into account, the respondent acted by implementing appropriate measures, but the result was not as expected.

All these actions indicate compliance with reasonable diligence on the part of the respondent.

Therefore, the processing carried out by the respondent complies with the provisions of Article 6 of the GDPR, as the person processing the SIM duplicate was not who they claimed to be, and without prejudice to the fact that this relationship may be questioned before the corresponding judicial authority, given that the complainant states and reported to the Police that someone impersonated their identity using their personal data to contract with the aforementioned telecommunications operator using copies of identifying documents such as their ID.

From the documentation in the file, it is evident that there is an absence of the subjective element of culpability necessary in the actions of the respondent to exercise the sanctioning power.

In this regard, the Judgment of the National Court of March 22, 2012, addresses a similar case in the following terms: "(...) For all of which and in view of the special circumstances present in the case at hand, it is not possible to appreciate any culpability (not even in terms of negligence or lack of diligence) in the actions of the appellant entity, which acted under the belief that the person with whom it was contracting was who they claimed to be and identified themselves as such with documentation that appeared authentic and corresponding to them, for which they were legitimized to process their personal data. Consequently, as one of the requirements necessary for the imposition of a sanction for violation of the principle of consent enshrined in Article 6.1 of the LOPD is lacking, it is appropriate to annul the sanction imposed for the commission of said infringement."

Consequently, it is appropriate to archive the present preliminary investigation proceedings as no violation of data protection regulations has been observed, since the established facts do not evidence conduct that can be subsumed in the catalog of infringements provided for and sanctioned in said regulations.

III

Conclusion

Consequently, in the present recourse for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

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IV

Late Resolution

Due to operational reasons of the administrative body, therefore not attributable to the appealing party, as of the date hereof, the mandatory pronouncement of this Agency regarding the present appeal has not been issued.

According to the provisions established in Article 24 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the effect of administrative silence in procedures for challenging acts and provisions is dismissive.

Nevertheless, and despite the time elapsed, the Administration is obliged to issue an express resolution and to notify it in all procedures, regardless of their initiation form, as provided in Article 21.1 of the aforementioned LPACAP.

Therefore, it is appropriate to issue the resolution that concludes the procedure of the appeal for reconsideration filed.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by Mr. A.A.A. against the resolution of this Spanish Agency for Data Protection issued on September 23, 2022, in file EXP202200378.

SECOND: TO NOTIFY this resolution to Mr. A.A.A.

In accordance with the provisions established in Article 50 of the LOPDPGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route in accordance with Article 48.6 of the LOPDPGDD, and in accordance with the provisions established in Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry

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through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

Mar España Martí

Director of the Spanish Agency for Data Protection

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